

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 2023.030, subdivisions (a) through (e), the court is authorized, after notice and an opportunity for hearing, to impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process: monetary sanctions, issue sanctions, evidence sanctions, terminating sanctions, and contempt. Code of Civil Procedure, section 2023.010, subdivision (g) provide that a misuse of the discovery process includes evasive responses to discovery. (Code Civ. Proc. § 2023.010(f)). “It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion [to deem admitted the truth of the matters specified in the requests for admission].” (Code Civ. Proc., § 2033.280, subd. (c)).

“The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. [Citation.]” (*Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992; *J.W. v. Watchtower Bible and Tract Society of New York, Inc.* (2018) 29 Cal.App.5th 1142, 1169). If a lesser sanction fails to curb misuse, a greater sanction is warranted. (*Doppes, supra*, 174 Cal.App.4th at p. 992). “Discovery sanctions ‘should be appropriate to the dereliction, and should not exceed what is required to protect the interests of the party entitled to but denied discovery.’” (*Id.*).

“But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.” (*Id.*, quoting *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279–280); *Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 702, quoting *Doppes* and *Mileikowsky*). The court should consider the totality of the circumstances, including conduct of the party to determine if the actions were willful, the detriment to the propounding party, and the number of formal and informal attempts to obtain discovery. (*Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1246).

Pursuant to Code of Civil Procedure section 2023.010, “the court shall impose a monetary sanction. . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code of Civ. Proc. §§ 2023.010 and 2031.300).

III. ANALYSIS

Here, Defendants Satvir Singh and Golden Bird Inc. assert that Plaintiffs Edgar Nunez and Adrian Villalobos have engaged in continuous and pervasive misuse of the discovery process by failing to respond to discovery. Defendant avers that the Plaintiffs Nunez and Villalobos failed to pay the \$670.50 of sanctions ordered by Judge Deen on March 25, 2025 after finding that the said plaintiffs failed to provide discovery responses to Form Interrogatories, set one, and Demand for Production, set one. (Declaration of Epps. P. 2; Exhibit A). Defendants sent a further meet and confer correspondence on January 27, 2026 regarding the outstanding discovery and payment of sanctions that were ordered by the court (*Id.*; Exhibit D). Defendants asserts that the plaintiff has failed to provide discovery responses or the sanctions that were ordered and continue to engage in ongoing tactics. (Plaintiff’s Motion, at p. 4). Defendants assert that the January 4, 2027 trial date is upcoming and the defendants will suffer significant prejudice should the matter proceed without he requested sanctions. (*Id.*, at p. 2).

The Defendants seeks terminating, evidentiary (precluding plaintiff from offering any evidence of injuries at trial), and/or monetary sanctions in the amount of \$1,290.00 against Plaintiff Edgar Nunez and Adrian Villalobos (Case No. 24CV438580 only) for engaging in a continued and pervasive misuse of discovery process. (*Id.*, at p. 7). Defendants counsel seeks six hours of time at the hourly rate of \$205.00 as well as \$60.00 in cost for filing fees associated with this motion. (*Id.*; Declaration of Epps).

The Court also notes that on March 25, 2025 after an order to show cause hearing, Judge Deen dismissed Plaintiffs Nunez and Villalobos Complaint (Case No. 24CV438580 only) for failure to appear by the said plaintiff and their attorney of record Joseph Duc Dang. Plaintiffs Nunez and Villalobos filed a motion to set aside the dismissal, which this Court heard on January 25, 2026 and granted after finding mandatory relief was warranted based on the Declaration of attorney Joseph Duc Dang admitting fault for the prior failures to appear and his inadvertence, and negligence pursuant to Code of Civil Procedure section 473(b).

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on May 29, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

The Court finds that the Defendants have met its burden of showing that he plaintiff has not complied with the court orders and discovery. Thus, the Court finds that monetary sanctions are appropriate given Plaintiffs Nunez and Villalobos refusal to comply with court ordered discovery regarding responses to Form Interrogatories, set one, and Demand for Production, set one and failure to pay the \$670.50 in sanctions that was imposed by Judge Deen on March 25, 2025. The responses and payment of sanctions were due within ten days of that ruling. It has been more than a year since that order and no responses or sanctions were paid. This is undue delay. Trial is set in seven months and failure to provide discovery may result in terminating or evidentiary sanctions. The court notes that discovery statutes evidence an incremental approach regarding evidentiary and monetary sanctions. (*Doppes, supra*, 174 Cal.App.4th at 992). The Court takes into consideration the totality of the circumstances and attempts to curb noncompliance while attempting to impose less severe sanctions to produce compliance. (*Mileikowsky, supra*, Cal.App.4th at 279–280).

Accordingly, at this time the Court will decline to impose terminating or evidentiary sanctions. The Court will award the full amount of monetary sanctions requested by the Defendants as reasonable and warranted in an amount of \$1,290.00 in addition to the March 25, 2025 ordered amount of \$670.50. However, Plaintiffs Nunez and Villalobos are admonished to comply with Court orders and discovery process, further refusal to comply with either may result in evidentiary or terminating sanctions.

IV. CONCLUSION

Based on the foregoing, and the motion being unopposed, the motion for terminating and evidentiary sanctions is DENIED without prejudice at this time. The motion for monetary sanctions in the amount of \$1,290.00 in favor of Defendants Satvir Singh and Golden Bird Inc. and against Plaintiffs Edgar Nunez and Adrian Villalobos is GRANTED.

Plaintiffs Edgar Nunez and Adrian Villalobos are ORDERED to Comply with discovery responses ordered on March 25, 2025 and provide response within 10 days of this hearing.

Plaintiffs Edgar Nunez and Adrian Villalobos are ORDERED to pay the \$1,290.00 in sanctions as well as the \$670.50 prior court ordered sanction on March 25, 2025 to be paid within 10 court days of this hearing.

The Court will prepare the formal Order.

Calendar Lines # 4
Case Name Sabina Hall vs UDream Builders, Inc.
Case No. 24CV435287
Motion to Set Aside Default Judgment <u>I. BACKGROUND</u> On March 13, 2025, the Honorable Daniel Nishigaya authorized a default judgment in favor of Plaintiff Sabina Hall (“Hall”) and against Defendant UDream Builders, Inc. (“UDream”) in the amount of \$273,808.47 comprised of (\$212,380.00 in damages; \$55,801.00 in prejudgment interest at 10%; \$4,982.37 in attorney’s fees; and \$645.10 in costs). A Notice of Entry of Judgment was then filed on August 11, 2025. On December 8, 2025, Defendant UDream filed this motion to set aside default judgment under Code of Civil Procedure sections 473 (b) & (d) and 473.5(a) and (b), 415.20 and 418.10. (Defendant’s Motion, p. 2). Defendant challenges the substituted service on UDREAM as invalid as a matter of fact and law. (<i>Id.</i>). Specifically, Defendant avers that the plaintiff’s substituted service on Sandra Contreras on April 16, 2024 was improper as she was an unauthorized person to receive service. (<i>Id.</i>, at p. 3). Defendant also contends that documents were not mailed to its 3200 Canoga Ave., #111, Woodland Hills, California 91367 address (<i>Id.</i>, at p. 3-4). Defendant argues that the plaintiff obtained the judgment by fraud. (<i>Id.</i>, at p. 4). Plaintiff Hall filed opposition papers on May 26, 2026. Plaintiff repudiates the defendant’s allegations that service was not proper under Code of Civil Procedure section 415.20. Plaintiff asserts that personal delivery to a competent adult was effected at UDREAM’s usual place of business; mail service was confirmed; and photographic evidence of the individual accepting service. “Moreover, UDREAM’s principal called Plaintiff’s counsel after service, leaving a voicemail acknowledging receipt of the summons and complaint.” (Plaintiff’s Opposition, p. 1-2; Declaration of Porumbescu, Exhibits B-E). Plaintiff asserts that UDREAM makes false assertions and seeks to have the motion denied. (<i>Id.</i>). Defendant UDream filed a reply brief on June 1, 2026, and avers that the plaintiff has not demonstrated that she will be prejudiced by setting aside the default. (Defendant’s Reply brief, p. 2). Defendants avers that the law favors deciding cases on the merits. (<i>Id.</i>, at p. 2-3). The Court carefully reviewed the following: Defendant’s notice motion; memorandum of points and authorities in support of the motion; Declaration of Hen Galamidi in support of Defendant’s motion; Declaration of Gary N. Sewartz and attached Exhibits A-D (totaling 41 pages); Plaintiff Hall’s opposition papers (totaling 5 pages); Declaration of Sabrina Hall in opposition and attached Exhibits A-D (totaling 5 pages); Declaration of Michelle Porumbescu in opposition and attached Exhibits A- E (totaling 15 pages); Plaintiff’s objection to evidence (totaling 4 pages); Plaintiff’s Request of Judicial Notice (totaling 146 pages); Defendant’s Reply brief (totaling 5 pages); proof of services; and the pleadings. <u>II. LEGAL STANDARD</u> A. CODE OF CIVIL PROCEDURE SECTION 473(B) Code of Civil Procedure section § 473(b) provides for both discretionary and mandatory relief. In terms of discretionary relief section 473(b), in pertinent part, reads as follows: The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy